

Tentative Rulings for August 28, 2026 Department M302

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M302 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT IN-PERSON OR VIA ZOOM VIDEO WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 672 7660**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2503722	ELSMORE VS BROWN	MOTION FOR LEAVE TO AMEND COMPLAINT

Tentative Ruling: Grant in part. Grant as to amendments alleged against prior defendants, with 5 days leave to file the amended complaint. Deny as to Duane Denzer. Confirm the MSC on October 8, 2026, and the court trial on November 13, 2026. Pursuant to the court's department rules, all litigants and witnesses may appear remotely.

2.

CASE #	CASE NAME	HEARING NAME
CVSW2401961	WETTELAND V. UNIVERSAL HEALTH	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: Overrule Plaintiffs' Objections. Sustain Dr. Nafiu's Objection Nos. 1-7. GRANT the motion for summary judgment in favor of Defendant, Bolaji A. Nafiu, M.D. and against Plaintiffs.

Defendant, Dr. Nafiu, asserts that he did not breach any duty as established by his medical expert, Dr. Demetriades, who opined that Dr. Nafiu met the standard of care for surgeons practicing in the State of California in 2022 in all respects in the care and treatment provided to Karla Wetteland. (Undisputed Material Fact ["UMF"] No. 32.) Dr. Nafiu performed a complete exam of Karla and ordered all necessary diagnostic testing. (UMF No. 33.) An MRI was ordered to rule a neoplasm out. (UMF No. 34.) Dr. Nafiu properly relied on consults for orthopedic and neurosurgery issues. (UMF No. 37.) Dr. Demetriades also opined that to a reasonable medical probability, Dr. Nafiu did not cause nor contribute to any of Karla's claimed injuries. (UMF No. 41.) Dr. Nafiu also did not contribute or cause Plaintiff's cancer to go undiagnosed in 2022. (UMF No. 42.)

Plaintiffs assert objections to Dr. Nafiu's expert, Demetrios Demetriades, M.D.'s declaration on grounds of lack of foundation, opinion based on improper matter, lack of personal knowledge, hearsay, lack of authentication, improper legal conclusions, and speculation. None of these objections are warranted. Dr. Demetriades is a properly qualified expert in trauma surgery and is familiar with the standard of care. (Dec. Demetriades ¶ 2, Ex. "1".) Dr. Demetriades relies on his expertise and review of materials in this case, including Karla's medical records. "Although hospital and medical records are hearsay, they can be admitted under the business records exception to the hearsay rule", but they must be properly authenticated. (*Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 742.) The medical records are properly authenticated by Dr. Nafiu's counsel, Lawrence D. Wong. (Dec. Wong ¶¶ 4-7, Exs. "C" – "D".)

In addition, an expert opinion must be supported by reasons or explanations. (*Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 523-524.) This means that, "an expert's opinion rendered without a reasoned explanation of why the underlying facts lead to the ultimate conclusion has no evidentiary value because an expert opinion is worth no more than the reasons and facts on which it is based." (*Bushling v. Fremont Medical Center* (2004) 117 Cal.App.4th 493, 510.) An "expert opinion that is based on speculation or conjecture is inadmissible." (*Mitchell v. Untied Nat'l Ins. Co.* (2005) 127 Cal.App.4th 457, 478.) "Courts will exclude expert opinions based on invalid assumptions, such as on facts without evidentiary support." (*Sanchez v. Kern Emergency*

Med. Transp. Corp. (2017) 8 Cal.5th 146, 155.) Here, Dr. Demetriades has provided his opinions along with reasoned explanations. Therefore, Plaintiffs' Objections are overruled.

Plaintiffs also dispute UMF Nos. 32-34, 37, 41, and 42. (Plaintiff's Response to Separate Statement [PRSS].) As to Dr. Demetriades' opinion on the standard of care, Plaintiffs assert this is a "disputed expert conclusion not a material fact." (PRSS, UMF No. 32.) Plaintiffs assert "Dr. Nafiu breached the standard of care by failing to review Dr. Green's MRI report with due diligence", relied on the report performed without contrast, and was negligent in evaluating the report. (*Ibid.*) Notably, none of Plaintiffs' expert provide this opinion. Instead, it is based on arguments made in the Opposition. As support in disputing UMF Nos. 32-34, and 37, Plaintiffs cite to Karla Wetteland's medical records; and declarations from Dr. Arora, Dr. Cotton, Karla Wetteland, and Dr. Nafiu's deposition transcript. (*Ibid.*) Plaintiffs also dispute the element of causation stating this is a "disputed expert conclusion controverted by Plaintiffs' experts." (UMF No. 41.)

However, Plaintiffs' experts' opinions are objectionable. Dr. Nafiu asserts his own objections to Plaintiff's evidence on grounds of lacks foundation/personal knowledge; hearsay; speculation; and improper expert opinion. Dr. Nafiu objects to the entire declaration of Dr. Arora who relied on evidence that is not before the court including guidelines and advisory opinions. (Obj. No. 1.) More importantly, this declaration was not prepared for this motion. Dr. Arora, a radiologist, opined that *Dr. Green* (also a radiologist) breached the standard of care, not Dr. Nafiu. (Dec. Wispell, Ex. "A", Dec. Arora ¶ 39.) Therefore, the objection is sustained as to Dr. Arora's declaration.

Dr. Nafiu also objects to a portion of Plaintiff Karla Wetteland's declaration on similar grounds. In one instance, Karla improperly opines about her own medical condition and what treatment was required. (Obj. No. 2; Dec. Wetteland ¶ 5, 2:1-4.) This objection is sustained.

Dr. Nafiu further objects to the declaration of Dr. Cotton, like Dr. Arora, for relying on evidence not before the court and failing to disclose that he is not qualified to offer his opinion on Dr. Nafiu's care and treatment (no CV is attached for Dr. Cotton.) (Obj. No. 3.) Dr. Cotton also improperly opined about what Karla's orthopedic expert did without having personal knowledge or stating he had reviewed the orthopedic expert's opinions. (Obj. No. 4.) These objections are sustained. Moreover, Dr. Cotton does not demonstrate he is familiar with the standard of care of any provider who treated Karla, including Dr. Nafiu – a trauma surgeon. Dr. Cotton declares he is a physician in private practice, certified by the American Board of Internal Medicine. He does not declare any expertise in orthopedic surgery or in oncology.

An expert "declaration must contain *facts* showing the expert's qualifications (competency) to express the opinion in question; e.g., facts showing the declarant has the training, experience or necessary skill to render an opinion on the particular matters in controversy." (*Id.* § 10:124.2 citing *Howard Entertainment, Inc. v. Kudrow* (2012) 208 Cal.App.4th 1102, 1107 ["The foundation required to establish the expert's qualification is a showing that the expert has the requisite knowledge of, or was familiar with, or was involved in a sufficient number of transactions involving the subject matter of the opinion"]; see *Salasguevara v. Wyeth Labs, Inc.* (1990) 222 Cal.App.3d 379, 387 ["treating physician's declaration insufficient because no showing he was qualified to express opinion on cause of patient's neurological problem"].) "For example, where a medical malpractice action is based on emergency room care, only experts who have "substantial professional experience" in providing such services "within the last five

hears” are qualified to testify to the standard of care.” (*Id.* § 10:124.3 citing Health & Safety Code § 1799.110(c); see *Petrou v. South Coast Emerg. Group* (2003) 119 Cal.App.4th 1090, 1094 [five-year period measured from the date of alleged malpractice].) Here, Plaintiffs oppose the motion with experts who do not have a similar expertise of Dr. Nafiu. Therefore, Plaintiffs have not sufficiently *demonstrated or established* that their experts are qualified to render the opinions they have offered.

Finally, Dr. Nafiu objects to the declaration of Dr. Van Scoy-Mosher, M.D., on similar grounds for relying on evidence not before the court. (Obj. No. 5.) He also objects to Dr. Van Scoy-Mosher’s opinion that if the sarcoma had been diagnosed in the summer of 2022, and surgery were performed then, it “would have very likely been completely successful” and “required significantly less removal of her spinal structures.” (Obj. No. 6.) Dr. Van Scoy-Mosher also opined on the possible future recurrence of the sarcoma and prognosis. (Obj. No. 7.) The objections are well-taken especially as to speculation and improper expert opinion. Moreover, Dr. Van Scoy-Mosher is a general oncologist. He has not demonstrated experience in or knowledge about performing oncologic surgery or spine surgery to remove cancerous tumors or trauma surgery. Dr. Nafiu’s objections are sustained.

Plaintiffs also assert their own undisputed facts, which include facts about the accident and subsequent medical care, including facts about Dr. Nafiu’s care and treatment of Karla. (Plaintiff’s Additional Material Facts [PAMF] Nos. 1-22.) Some of these facts rely on the declarations of Plaintiffs’ experts, which are objectionable as discussed above. Plaintiffs have not presented expert opinion establishing that Dr. Nafiu breached the standard of care or caused or contributed to Karla’s injuries. To the extent that Plaintiffs claim that expert opinion is not required, this position is untenable in light of the requirement for an opposing party to submit contradictory expert opinion in a medical malpractice action. (*Jambazian v. Borden* (1994) 25 Cal.App.4th 836.) In addition, plaintiff must establish causation within a “reasonable medical probability” based upon competent expert testimony. (*Jamison v. Desta* (2013) 215 Cal.App.4th 1144, 1166-1167; *Jones v. Ortho Pharmaceutical Corp.* (1985) 163 Cal.App.3d 396, 402-403.) Plaintiffs have failed to meet their burden. Therefore, summary judgment is granted in favor of Dr. Nafiu.

4.

CASE #	CASE NAME	HEARING NAME
CVSW2305042	SMITH V. SABEH-AZAR	MOTION TO ENFORCE SETTLEMENT 664.6

Tentative Ruling: Grant the application for enforcement of settlement, pursuant to Code of Civil Procedure section 664.6. Plaintiffs have put forth evidence demonstrating that Defendant has failed to comply with her obligations of the settlement. Accordingly, the Court will enforce the remedies agreed upon by the parties by allowing the parties’ Stipulated Judgment to be filed and entering judgment awarding \$285,302.00 for Plaintiffs’ general damages, plus the fees awarded to Plaintiff, for a total judgment of \$ 417, 328.25. The moving party shall submit the Proposed Stipulated Judgment, consistent with this ruling, within 5 days.

Plaintiffs, Thomas V. Smith and Julia L. Smith (“Plaintiffs”), move to enforce the settlement agreement reached by the parties on August 08, 2025, and to enter judgment thereon. Plaintiffs are residential property owners in Temecula, California, who sued the owner of the adjacent property for trespassing onto Plaintiffs’ property and cutting down trees sitting on their land.

Prior to going to trial, the parties settled, and their settlement terms were committed to a written Compromise, Settlement, and Mutual Release (“Settlement Agreement”). Plaintiffs contend that Defendant has breached her obligations under the Settlement Agreement and therefore judgment must be entered into in accordance with the agreement.

The matter has been pending for several months, giving Defendant time to cure her breach of the settlement agreement. On January 08, 2026, Plaintiffs initially appeared ex parte seeking enforcement of the Settlement Agreement under Code of Civil Procedure section 664.6 as authorized by the term of the Settlement Agreement. In particular, Plaintiffs contend that, among other things, Defendant has failed to satisfy her obligations under the Settlement agreement by failing to: (1) Obtain a loan to pay the cost of removing the remaining tree stumps and debris from the area of Plaintiffs’ property where the trees were previously located; (2) complete the removal within 75 days from the date of the execution of the agreement; and (3) pay the fees and costs awarded by the Court within 5 days from the date Defendant obtains the loan. For these reasons, Plaintiffs’ request for judgment to be entered for the total award of \$417,328.25, which represents the agreed-upon replacement cost of the trees and the fees \$124,451.25 that Judge Rhodes awarded to Plaintiffs on October 27, 2025. The following language of the Settlement Agreement serves as the basis for Plaintiffs’ request:

iii. If Defendant fails to timely pay the Fees and Costs as provided herein, Plaintiff may file and enforce a Stipulated Judgment against Defendant. The Stipulated Judgment Amount is comprised of 2 amounts: \$285,302.00 for Plaintiffs’ general damages, plus the amount if any, ordered by the Court for Plaintiffs’ attorneys’ fees and costs. (Declaration of Thomas Dreblow [“Dreblow Decl.”], Ex. 1 [Settlement Agreement, § 2].)

In accordance with the Settlement Agreement, on August 21, 2026, parties signed a Stipulated Judgment which was to be held by Plaintiffs’ counsel without being filed “unless Defendant fails to timely pay for the removal/installation of the trees and the Fees and Costs.” (Dreblow Decl., Ex. 1 [Settlement Agreement, §2.d.iv].) A copy of the signed Stipulated Judgment is attached as Exhibit 2 to the declaration of Plaintiffs’ counsel submitted in support of the ex parte application. (Dreblow Decl., Ex. 2.) The Stipulated Judgment on paragraph 17 includes a blank space for the total judgment amount to be filled out by the Court.

On January 09, 2026, the Court continued the hearing on Plaintiff’s ex parte application to February 10, 2026, to allow Defendant an opportunity to file an opposition. In lieu of an opposition, however, Defendant, who is now self-represented, filed a declaration explaining that, as Court has instructed, she has been making good-faith attempts to comply with the Settlement Agreement. *Defendant does not address the default on the obligations raised in Plaintiffs’ ex parte application.* Rather, Defendant sheds light on the ongoing disagreements between the parties in regard to Defendant’s obligation to find replacement trees of “like kind and size” to those trees cut from Plaintiffs’ property. Defendant contests the measurement provided by Plaintiffs’ tree appraiser that the height and diameter of the trees which were cut down were materially smaller than the exemplar trees used in the measurement and that she has proposed reasonable replacement options of trees approximately 14-16 feet in height. (Declaration of Roanna Sabeh-Azar [“Sabeh-Azar”], ¶¶ 3-6.) Defendant points out that the Settlement Agreement does not define the term “size” nor incorporate or reference any appraisal, expert report, or third-party estimate as a specification for performance. (Id. at ¶ 8.) Defendant asserts that her estimated range of height of the original trees is based on both her direct observation and the photographs taken of the original trees before and after they were cut down, which include

the images of the remaining trunk sections and stumps left behind. She asserts that the photographs are the only “direct physical evidence” left of the trees. (Id. at ¶¶ 3, 10-13.) The court repeatedly stressed the importance of curing the breach on the loan, cleanup of stumps, contacting nurseries, and payment of fees.

On February 03, 2026, Plaintiffs filed their reply to Defendant’s opposing declaration. They argue that the Settlement Agreement is sufficiently clear as to size, type, price, and number of trees that Defendant agreed to replace. Plaintiff’s reply is accompanied by their counsel’s declaration stating that the specific measurements Plaintiffs provided Defendant were personally taken by their appraiser (Applegate) when he visited Plaintiffs’ property and assessed the specific damaged trees at issue. (Declaration of Thomas Dreblow iso Reply [“Dreblow Reply Decl.”], ¶ 5, Ex. 2.) Plaintiffs’ counsel also states that Defendant has not provided the names of the nurseries that could provide replacement options, has not paid the attorney fee award which came due on November 11, 2025, and has not removed the stumps and debris that was required to be completed within 75 days of executing the Settlement Agreement. Plaintiffs point out that the Court’s jurisdiction at this stage is limited to enforcing the terms of the Settlement Agreement and that Defendant is undeniably in breach justifying the entry of judgment in accordance with the settlement terms.

On February 10, 2026, the matter came on for a hearing. The Court continued the hearing once again to March 20, 2026, for reason Defendant failed to file her opposition; although it was served on Plaintiffs. On March 20, 2026, the matter came on for a hearing. After hearing arguments from both sides, the Court set a “4-hour 664.6 hearing” scheduled for July 29, 2026, for the Court to consider testimony re: whether judgment should be entered in this matter. On July 22, 2026, the assigned judge, Honorable Randy Rhodes, continued the July 29th hearing to August 28, 2026. A petition for a writ of mandate was filed in the District Court of Appeal, which was denied on August 10, 2026.

Plaintiffs’ evidentiary objection to Defendant’s declaration: On February 03, 2026, Plaintiffs served and filed evidentiary objections to Defendant’s declaration. The court rules as follows:

Objection #1: overrule

Objection #2: sustain only as to the first sentence and overrule as to the remaining.

Objection #3: overrule only as to “I believe the trees at issue were approximately 14-16 in trunk height...” sustain as to the remaining. “A nonexpert may give testimony in the form of an opinion where it is ‘rationally based on the perception of the witness’ and is ‘helpful to a clear understanding of his testimony,’ (Evid. Code, § 800[)],” and this may include description of speed, distance, size, and weight. (*Wheeler v. St. Joseph Hosp.* (1977) 63 Cal.App.3d 345, 362; *Dean v. Feld* (1946) 77 Cal.App.2d 327, 330-331.)

Objection #4: overrule.

Objection #5: sustain.

Objection #6: sustain only as to the first and second sentences. Overrule as to the remaining.

Objection #7: sustain.

Objection #8: sustain.

Objection #9: sustain.

Objection #10: sustain.

Code of Civil Procedure section 664.6: Code of Civil Procedure section 664.6 provides: “If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., §664.6.) The court’s decision to adopt a settlement as a judgment under section 664.6 is not mandatory as the statute states that a court “may enter judgment pursuant to the terms of the settlement...” (*In re Jason E.* (1997) 53 Cal.App.4th 1540, 1546.) Although a motion for enforcement of a settlement filed under section 664.6 is not an exclusive means to enforce an agreement, section 664.6 provides for an expeditious procedure intended to “benefit not only parties but also the justice system, relieving it of the burden of more time consuming and expensive processes. [Citation.]” (*In re Marriage of Woolsey* (2013) 220 Cal.App.4th 881, 898.) “A trial court, when ruling on a section 664.6 motion, acts as a trier of fact.” (*Skulnick v. Roberts Express, Inc.* (1992) 2 Cal.App.4th 884, 889.) The court “acting upon a motion under section 664.6 may determine the motion upon declarations alone” or, in the trial judge’s sound discretion, may receive oral testimony in making a determination on the motion. (*Ibid.*; *Fiore v. Alvord* (1985) 182 Cal.App.3d 561, 565.)

A settlement agreement is a contract, and the legal principles which apply to contracts generally apply to settlement contracts. (*Bowers v. Raymond J. Lucia Companies, Inc.* (2012) 206 Cal.App.4th 724, 732.) “ ‘Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit.’ [Citation.] A trial court ‘hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment.’ [Citation.] The trial court may not ‘create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.’ [Citation.] Thus, a trial court cannot enforce a settlement under section 664.6 unless the trial court finds the parties expressly consented, in this case in writing, to the material terms of the settlement. [Citation.]” (*Id.* at 732.) In ruling on a motion under section 664.6, the trial court cannot rewrite the settlement agreement or add what was omitted. (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 810 [“nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon”].

Here, although the Court is not bound by section 664.6 to enter judgment, the entry of the parties’ Stipulated Judgment is a remedy which the parties have agreed to in the event of Defendant’s breach of the terms. Hence, the Court’s order enforcing the settlement would result in the entry of judgment awarding \$417,328.25 to Plaintiffs, which represents the amount of the agreed-upon replacement cost of the trees (\$285,302) as specified in the agreement and the October 27, 2025, fee award. The facts are straightforward –after the execution of the Settlement Agreement, Defendant has not obtained a loan, has not timely removed the stumps and debris from Plaintiffs’ property, and has not timely paid the fees awarded to Plaintiffs. Defendant does not deny these facts. Rather, Defendant raises another ongoing issue regarding the size of the replacement trees and the selection of the appropriate supplier. Irrespective of the outstanding

disputes over the interpretation as to the meaning of “replacement trees” of “like kind and size,” Defendant is undisputably in breach of several terms of the settlement and though given substantial time to cure, has failed to do so. Therefore, the court will not conduct a further evidentiary hearing on “replacement trees” and will, instead, enforce the remedies the parties agreed to, which is to allow the Stipulated Judgment to be filed and for the Court to enter judgment in accordance its terms.